



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

March 25, 2022

POLICE COMMISSIONER'S PENALTY DEPARTURE

Re: CCRB Case No. 202001961 regarding Sergeant Kit Yung, Tax No. [REDACTED] (DADS No. 2021-24360)

Dear Mr. Darche:

The Police Commissioner has reviewed the facts and circumstances in this matter and determined that Sergeant Yung's actions do not warrant a command discipline, but instead call for Training.

The CCRB investigator determined that this matter should be closed as unsubstantiated. The CCRB Board overruled the investigator but did not provide any reasoning for their decision. There was no video evidence and the witnesses had varying accounts of what was stated to the complainant. The incident itself was of an extremely short duration and no enforcement action was taken or other documentation prepared. Additionally, Sergeant Yung could not recall the details of the incident to provide further context. Thus, absent any other information, the Police Commissioner finds that it could not be sufficiently determined that the statements by Sergeant Yung constituted a threat of arrest. Therefore, Sergeant Yung will receive no disciplinary action for the threat of arrest allegation.

However, the Police Commissioner acknowledges that several witnesses stated that Sergeant Yung was unnecessarily hostile in his demeanor and did not adequately explain the reasoning for his statements to the complainant. Thus, the Police Commissioner believes that Sergeant Yung would benefit from training in courtesy rather than formalized discipline.

Therefore, the Police Commissioner directs that Sergeant Yung receive Training in Patrol Guide Procedure No. 200-02 (Mission, Vision, and Values of the New York City Police Department). If you have any questions, please feel free to contact me at [REDACTED]

Yours truly,

A handwritten signature in black ink, appearing to read 'L. Soto', with a stylized flourish extending to the right.

Lourdes Soto
Inspector
Commanding Officer
Police Commissioner's Office